

MASTER SERVICES AGREEMENT

Fruition Services, Inc.

Version 2.0 | Effective 01/07/2026

ABOUT THIS DOCUMENT

This Master Services Agreement (this "Agreement") sets out the standing terms and conditions on which Fruition Services, Inc., a Delaware corporation ("Fruition"), provides business process consulting, software implementation, systems integration, delivery, and evaluation support services, including the configuration and implementation of third-party software platforms.

This Agreement is not itself a signed contract and is not executed by the parties. It becomes binding on a client ("Client") only when, and to the extent that, Client and Fruition execute a Work Order that expressly incorporates this Agreement by reference. On execution of such a Work Order, this Agreement, in the version identified in that Work Order, forms part of the contract between Fruition and Client, and Fruition and Client are each a "Party" and together the "Parties."

The purpose of this structure is to allow the specific scope, fees, and timeline of each engagement to be set out in a short Work Order, without the Parties renegotiating these general terms for each engagement.

VERSION CONTROL

Fruition may revise this Agreement from time to time. Each Work Order identifies the version of this Agreement that applies to it. A revision to this Agreement does not apply to, and does not amend, any Work Order executed before the effective date of that revision. The version of this Agreement in force for a Work Order is the version identified in, and provided to Client with, that Work Order.

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

The following capitalized terms have the meanings set out below wherever used in this Agreement or in any Work Order.

"Acceptance" means Client's acceptance of a Deliverable in accordance with Section 8, including deemed acceptance under Section 8.4.

"Acceptance Criteria" means the objective, testable criteria for a Deliverable set out in the applicable Work Order or, if none are stated, that the Deliverable conforms in all material respects to the description of that Deliverable in the applicable Work Order.

"Affiliate" means, with respect to a Party, any entity that directly or indirectly controls, is controlled by, or is under common control with that Party, where "control" means the ownership of more than fifty percent (50%) of the voting securities of an entity or the power to direct its management or policies.

"Agreement" means this Master Services Agreement, together with all Work Orders, Change Orders, Exhibits, and Schedules executed under it.

"Background IP" means all Intellectual Property Rights and materials owned, licensed, or developed by Fruition (a) prior to the Effective Date, (b) outside the performance of the Services, or (c) during the performance of the Services but which are of general application and are not specific to Client, including

Fruition's methodologies, frameworks, know-how, templates, board architectures, automation patterns, accelerators, reusable code, scripts, libraries, tools, documentation formats, and training materials, together with all improvements, modifications, and derivative works of the foregoing.

"Business Day" means any day other than a Saturday, Sunday, or day on which banks in New York, New York are authorized or required by law to close.

"Change Order" means a written amendment to a Work Order executed in accordance with Section 6.

"Client Data" means all data, records, and content that Client or its users enter into, upload to, or generate within any Third-Party Platform or system in connection with the Services.

"Client Materials" means all materials, documents, data, and information provided to Fruition by or on behalf of Client in connection with this Agreement or any Work Order, including Client Data.

"Commencement Date" means, with respect to a Work Order, the date on which Fruition is to begin performing the Services under that Work Order, as stated in that Work Order.

"Confidential Information" has the meaning given in Section 13.1.

"Default Rate" means the lesser of one and one-half percent (1.5%) per month, calculated on a simple, non-compounding basis, and the maximum rate permitted by applicable law.

"Deliverables" means the work product that Fruition is expressly required to deliver to Client under a Work Order, including configured boards, workflows, automations, integrations, dashboards, reports, and written documentation, but excluding Background IP, Third-Party Materials, and Third-Party Platforms.

"Effective Date" means, with respect to a Client, the date on which that Client and Fruition execute the first Work Order incorporating this Agreement.

"Fees" means the amounts payable by Client to Fruition for the Services, as set out in the applicable Work Order.

"Force Majeure Event" has the meaning given in Section 22.1.

"Intellectual Property Rights" means all intellectual property and proprietary rights of any kind, including copyrights, patents, trade secrets, trademarks, service marks, trade dress, database rights, moral rights, design rights, and all applications, registrations, renewals, and extensions of the foregoing, in each case worldwide.

"Party" and "Parties" have the meanings given in the preamble.

"Personnel" means, with respect to a Party, its employees, officers, directors, agents, contractors, and Subcontractors.

"Services" means the services to be performed by Fruition for Client as described in a Work Order.

"Subcontractor" means any third party, including any independent contractor or Affiliate of Fruition, engaged by Fruition to perform any portion of the Services.

"Taxes" means all sales, use, value-added, excise, gross receipts, and similar transaction taxes, duties, and levies imposed by any governmental authority, excluding taxes based on Fruition's net income, property, or employment.

"Third-Party Materials" means any software, code, libraries, plugins, connectors, templates, or other materials owned by a third party that are incorporated into or used in connection with a Deliverable.

"Third-Party Platform" means any software-as-a-service or other software platform owned or operated by a third party that is used in connection with the Services, including monday.com, Make.com, and any other platform identified in a Work Order.

"Work Order" means a written statement of work, order form, or similar document executed by both Parties that describes Services to be performed under this Agreement and that expressly incorporates this Agreement by reference.

1.2 Interpretation

- (a) Headings are for convenience only and do not affect interpretation.
- (b) "Including," "includes," and "such as" are illustrative and not limiting, and are deemed to be followed by "without limitation."
- (c) The singular includes the plural and vice versa, and any gender includes each other gender.
- (d) References to "Section" are to sections of this Agreement unless otherwise stated.
- (e) "Days" means calendar days unless the term "Business Days" is used.
- (f) "Written" and "in writing" include email, but do not include instant messaging, chat, or comments within a Third-Party Platform unless a Work Order expressly states otherwise.
- (g) References to a Party include its permitted successors and assigns.
- (h) No rule of construction requiring interpretation against the drafting Party applies to this Agreement, which the Parties agree was negotiated at arm's length.

2. STRUCTURE OF THE AGREEMENT

2.1 Framework

This Agreement establishes the terms and conditions that govern all Services provided by Fruition to Client. This Agreement does not by itself obligate Fruition to perform any Services or Client to purchase any Services. Fruition has no obligation to perform Services unless and until the Parties have executed a Work Order.

2.2 Work Orders

Each Work Order forms a separate contract that incorporates the terms of this Agreement by reference. There is no limit on the number of Work Orders the Parties may execute. The termination or expiration of one Work Order does not terminate this Agreement or any other Work Order.

2.3 Order of Precedence

In the event of a conflict or inconsistency, the following order of precedence applies, from highest to lowest:

- (a) a fully executed Change Order, as to the Work Order it amends;
- (b) the applicable Work Order, but only to the extent that Work Order expressly identifies the section of this Agreement it is modifying and states that it is intended to supersede that section;

- (c) this Agreement;
- (d) any Exhibit or Schedule to this Agreement; and
- (e) the applicable Work Order in all other respects.

A general statement in a Work Order that its terms prevail is not sufficient to supersede this Agreement. No purchase order, invoice, vendor portal terms, click-through terms, or other document issued by Client, and no document referenced in but not attached to a Work Order, forms part of this Agreement or has any legal effect, and any additional or conflicting terms in any such document are void, even if Fruition acknowledges or accepts the document.

3. TERM

3.1 Term of this Agreement

This Agreement begins on the Effective Date and continues until terminated in accordance with Section 19. This Agreement continues in effect for so long as any Work Order remains in force, notwithstanding any notice of termination given under Section 19.2.

3.2 Term of a Work Order

Each Work Order begins on its Commencement Date and continues until the Services under it are completed and accepted, or until the Work Order is terminated in accordance with Section 19.

4. THE SERVICES

4.1 Performance

Fruition shall perform the Services described in each Work Order in a professional and workmanlike manner, using personnel with the skill and experience reasonably required, and in accordance with generally accepted industry practice.

4.2 Manner of Performance

Fruition shall determine the method, details, and means of performing the Services, subject to the requirements of the applicable Work Order. Fruition may perform the Services remotely unless a Work Order expressly requires on-site work.

4.3 Requests for Instruction

Fruition may request written instructions from Client before taking any action in connection with the Services. Where Fruition acts in accordance with written instructions given by Client, Fruition shall not be liable for any loss arising from that action, and Client shall reimburse Fruition for any additional cost caused by a subsequent change to those instructions.

4.4 Suspension for Non-Payment

If Client fails to pay any undisputed amount when due, Fruition may, on five (5) Business Days' prior written notice, suspend performance of the Services under any or all Work Orders until payment is made in full. Suspension under this Section 4.4 does not constitute a breach by Fruition, and any dates or milestones affected by the suspension shall be extended by the length of the suspension plus a reasonable remobilization period.

5. CLIENT RESPONSIBILITIES AND DEPENDENCIES

5.1 Client Obligations

Client shall, at its own cost and in a timely manner:

- (a) provide Fruition with the access, credentials, permissions, licenses, environments, and administrative rights to each Third-Party Platform and to Client's systems that Fruition reasonably requires to perform the Services;
- (b) make available knowledgeable subject matter experts, decision-makers, and a designated project sponsor with authority to give approvals and make decisions;
- (c) provide Client Materials that are complete, accurate, and in a usable format, and bear the cost of preparing, cleaning, and migrating Client Data;
- (d) respond to Fruition's requests for information, decisions, approvals, and Acceptance testing within the timeframes set out in the applicable Work Order or, if none are stated, within five (5) Business Days;
- (e) obtain and maintain, at its own cost, all subscriptions and licenses to each Third-Party Platform required for the Services, and ensure that Fruition is authorized under those licenses to access the platform on Client's behalf; and
- (f) where any Client Materials or Client Data are sourced from or controlled by a third party, procure that the third party grants Fruition the access required to perform the Services.

5.2 Client Dependency Relief

Fruition's performance is dependent on Client's performance of Section 5.1. If Client fails to perform any obligation in Section 5.1, or is late in doing so:

- (a) Fruition is relieved of its obligations to the extent and for so long as that failure prevents or delays performance, and any affected dates, milestones, and timelines shall be extended on a day-for-day basis plus a reasonable remobilization period;
- (b) Fruition is not in breach of this Agreement or any Work Order as a result;
- (c) Fruition may invoice Client for any resulting standby time, idle resource cost, or rework at Fruition's then-current time and materials rates, provided Fruition has given Client written notice of the failure and Client has not cured it within five (5) Business Days of that notice; and
- (d) if the failure continues for thirty (30) days after Fruition's written notice, Fruition may terminate the affected Work Order for cause under Section 19.3.

5.3 Client Data Accuracy

Client is solely responsible for the quality, accuracy, legality, and completeness of all Client Materials and Client Data. Fruition has no obligation to verify Client Data and is not liable for any Deliverable defect, delay, or business outcome to the extent caused by inaccurate or incomplete Client Materials or Client Data.

6. CHANGE CONTROL

6.1 No Out-of-Scope Work Without a Change Order

Fruition is not obligated to perform, and shall not be deemed to have agreed to perform, any work that is not expressly described in a Work Order. Any change to the scope, Deliverables, Acceptance Criteria, timeline, or Fees under a Work Order must be documented in a Change Order signed by both Parties before the affected work begins.

6.2 Change Order Process

Either Party may request a change by written notice. Fruition shall, within five (5) Business Days, provide Client with a written impact assessment stating the effect of the requested change on scope, Fees, timeline, and Deliverables. Client shall respond within five (5) Business Days. If Client does not accept the impact assessment, Fruition shall continue performing under the existing Work Order without the requested change.

6.3 Out-of-Scope Work Performed at Client's Request

If Client requests that Fruition perform work outside the scope of a Work Order and Fruition performs it, that work shall be billed on a time and materials basis at Fruition's then-current rates, regardless of whether a Change Order was executed.

6.4 Rate Adjustment

Fruition may adjust its standard rates no more than once in any twelve (12) month period on thirty (30) days' prior written notice. An adjustment applies only to Work Orders executed after the effective date of the adjustment and to time and materials work performed after that date, and does not change the fixed Fees under any Work Order already in force.

7. RELATIONSHIP OF THE PARTIES

Fruition is an independent contractor. Nothing in this Agreement creates any employment, agency, partnership, joint venture, or fiduciary relationship between the Parties. Neither Party has authority to bind the other. Fruition is solely responsible for the compensation, benefits, taxes, and withholdings of its Personnel, and is responsible to Client for the performance of the Services by its Personnel.

8. ACCEPTANCE

8.1 Delivery

Fruition shall notify Client in writing when a Deliverable is ready for Acceptance testing.

8.2 Acceptance Testing

Client shall have ten (10) Business Days from that notice (the "Acceptance Period") to test the Deliverable against the Acceptance Criteria and to notify Fruition in writing either that it accepts the Deliverable or that it rejects it. A notice of rejection must be in writing and must state, in reasonable detail, each specific failure to meet the Acceptance Criteria.

8.3 Cure

If Client validly rejects a Deliverable, Fruition shall use commercially reasonable efforts to correct the identified failures within ten (10) Business Days and shall resubmit the Deliverable, at which point a new Acceptance Period of five (5) Business Days begins. This process shall repeat, provided that Client may not reject a Deliverable on any ground it could reasonably have raised in an earlier rejection notice.

8.4 Deemed Acceptance

A Deliverable is deemed accepted on the earliest of: (a) Client's written notice of acceptance; (b) expiry of the applicable Acceptance Period without a valid written notice of rejection; or (c) Client's use of the Deliverable in a live production environment for any business purpose.

8.5 Scope of Rejection

Client may not reject a Deliverable for a failure that is de minimis, that does not materially affect the Deliverable's conformance with the Acceptance Criteria, that arises from Client Materials or Client Data, that arises from a Third-Party Platform, or that arises from a change Client made to the Deliverable.

9. FEES, INVOICING, AND PAYMENT

9.1 Fees

Client shall pay Fruition the Fees set out in each Work Order. Each Work Order shall state whether the Fees are fixed-fee, time and materials, or a combination, and shall state the applicable rates. Rates are not set out in this Agreement.

9.2 Payment Schedule

Unless a Work Order expressly provides otherwise, Fees under each Work Order are invoiced as follows:

- (a) fifty percent (50%) of the total Fees on execution of the Work Order; and
- (b) fifty percent (50%) of the total Fees on Acceptance of the final Deliverable under that Work Order, including deemed Acceptance under Section 8.4.

9.3 Payment Terms

Client shall pay each undisputed invoice in full within fifteen (15) days of the date of the invoice, in U.S. dollars, in immediately available funds, and without any deduction, setoff, or counterclaim. Fruition shall have no obligation to commence Services under a Work Order until the invoice issued under Section 9.2(a) has been paid in full.

9.4 Expenses

Client shall reimburse Fruition for reasonable out-of-pocket expenses incurred in performing the Services, including travel and lodging, provided Client has approved the expense in writing in advance and Fruition provides supporting receipts.

9.5 Taxes

All Fees are exclusive of Taxes. Client is responsible for all Taxes arising in connection with the Services, other than taxes based on Fruition's net income, property, or employment. If Fruition is required to collect any Tax, it shall be added to the invoice and paid by Client. If Client is exempt, Client shall provide a valid exemption certificate before the first invoice is issued.

9.6 Disputed Invoices

Client must notify Fruition in writing of any disputed invoice amount, with reasons stated in reasonable detail, within ten (10) Business Days of the invoice date. Any amount not disputed within that period is deemed accepted and payable. Client shall pay all undisputed amounts on the due date notwithstanding any dispute, and the Parties shall resolve the disputed amount under Section 23.

9.7 Late Payment

Any undisputed amount not paid when due bears interest at the Default Rate from the due date until paid in full. Client shall reimburse Fruition for all reasonable costs of collection, including reasonable attorneys' fees.

9.8 Third-Party Platform Costs

Fees do not include subscription, license, seat, or usage costs for any Third-Party Platform, which Client contracts and pays for directly with the platform vendor.

10. INTELLECTUAL PROPERTY

10.1 Client Materials

As between the Parties, Client owns all right, title, and interest in and to the Client Materials and Client Data, including all Intellectual Property Rights in them. Nothing in this Agreement transfers any ownership of Client Materials or Client Data to Fruition.

10.2 License to Client Materials

Client grants Fruition a non-exclusive, royalty-free, worldwide license during the term of the applicable Work Order to use, copy, modify, and display the Client Materials and Client Data solely to the extent necessary to perform the Services and to exercise Fruition's rights under this Agreement, including the right to sublicense to Subcontractors for that purpose.

10.3 Background IP

As between the Parties, Fruition owns and retains all right, title, and interest in and to the Background IP, including all Intellectual Property Rights in it. Nothing in this Agreement assigns, transfers, or grants Client any ownership interest in the Background IP. Fruition's use of Background IP in performing the Services for Client does not restrict Fruition's right to use that Background IP for any other client or for any other purpose.

10.4 Ownership of Deliverables

Subject to Section 10.5 and to Client's payment in full of all Fees due under the applicable Work Order, Fruition hereby assigns to Client, effective upon receipt of such payment, all of Fruition's right, title, and interest in and to the Deliverables produced under that Work Order, including all Intellectual Property Rights in them. Until payment in full is received, all right, title, and interest in the Deliverables remains with Fruition, and Client's use of the Deliverables is licensed solely on a revocable basis for internal evaluation and Acceptance testing.

10.5 Carve-Out of Background IP and Third-Party Materials

The assignment in Section 10.4 does not extend to, and expressly excludes, any Background IP or Third-Party Materials that are embedded in, incorporated into, or necessary to the operation of a Deliverable. To the extent any Background IP is embedded in or necessary to the use of a Deliverable, Fruition grants Client a perpetual, irrevocable, non-exclusive, worldwide, royalty-free, fully paid-up license to use, copy, modify, and create derivative works of that Background IP solely as part of, and to the extent necessary to use, the Deliverable for Client's internal business purposes. That license does not permit Client to extract, isolate, distribute, resell, sublicense, or commercially exploit the Background IP separately from the Deliverable, or to use it to provide services to third parties.

10.6 Third-Party Materials

Client acknowledges that Deliverables may incorporate Third-Party Materials, and that Client's rights in Third-Party Materials are governed solely by the applicable third-party license. Fruition does not own Third-Party Materials and cannot and does not assign or grant Client any ownership of them. Fruition shall identify any material Third-Party Materials in the applicable Work Order or in the Deliverable documentation and shall use commercially reasonable efforts to procure the licenses required for Client's use of the Deliverable as contemplated by the Work Order.

10.7 Residuals

Nothing in this Agreement restricts Fruition or its Personnel from using the general knowledge, skills, experience, ideas, concepts, and techniques retained in their unaided memory as a result of performing the Services, provided that in doing so they do not disclose Client's Confidential Information or infringe Client's Intellectual Property Rights in the Deliverables.

10.8 Further Assurances

Each Party shall, at the requesting Party's expense, execute such documents and take such further actions as the other Party reasonably requests to perfect, record, or enforce the rights granted or assigned under this Section 10.

10.9 Survival

This Section 10 survives termination or expiration of this Agreement and of each Work Order.

11. THIRD-PARTY PLATFORMS

11.1 No Control

Client acknowledges that Fruition does not own, operate, host, or control any Third-Party Platform, including monday.com and Make.com, and that Fruition is not an agent, representative, or reseller of any Third-Party Platform vendor for the purposes of this Agreement unless a Work Order expressly states otherwise.

11.2 Direct Contractual Relationship

Client contracts directly with each Third-Party Platform vendor for its subscriptions and licenses. Client's use of each Third-Party Platform is governed solely by that vendor's terms of service, and Client is responsible for complying with them.

11.3 No Liability for Third-Party Platforms

Fruition is not liable for, and makes no representation or warranty regarding, any Third-Party Platform, including its availability, uptime, performance, security, data handling, pricing, feature set, or continued existence. Without limiting the foregoing, Fruition is not liable for any outage, defect, data loss, security incident, deprecation of functionality, change to an application programming interface, change to pricing or licensing terms, rate limit, or discontinuation of any Third-Party Platform, or for any consequence of any of the foregoing.

11.4 Excused Performance and Rework

If a change to a Third-Party Platform, including a change to its functionality, application programming interface, licensing terms, or availability, makes performance of the Services impossible, materially more

difficult, or materially more costly, Fruition's obligations are excused to that extent, affected timelines shall be extended by a reasonable period, and the Parties shall negotiate a Change Order in good faith to address the change. Any resulting rework is chargeable at Fruition's then-current time and materials rates.

12. CONFIDENTIALITY

12.1 Definition

"Confidential Information" means all non-public information disclosed by or on behalf of one Party (the "Discloser") to the other (the "Recipient"), whether disclosed orally, in writing, or by inspection, that is designated as confidential or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure. Confidential Information includes the terms of this Agreement and of each Work Order, Client Materials, Client Data, and Fruition's Background IP, pricing, and methodologies.

12.2 Obligations

The Recipient shall: (a) not disclose the Discloser's Confidential Information to any third party except as permitted by this Section 12; (b) use the Confidential Information only as necessary to perform its obligations or exercise its rights under this Agreement; and (c) protect the Confidential Information using at least the same degree of care it uses for its own confidential information of like importance, and in no event less than a reasonable degree of care.

12.3 Permitted Disclosures

The Recipient may disclose Confidential Information to its Personnel, Affiliates, and professional advisors who have a need to know it for a purpose permitted by this Agreement and who are bound by confidentiality obligations no less protective than those in this Section 12. The Recipient remains liable for any breach by those recipients.

12.4 Exclusions

The obligations in this Section 12 do not apply to information that the Recipient can demonstrate: (a) was in the public domain at the time of disclosure, or later entered the public domain other than through breach of this Agreement; (b) was rightfully in the Recipient's possession before disclosure, without an obligation of confidentiality; (c) was rightfully received from a third party without an obligation of confidentiality; or (d) was independently developed by the Recipient without use of or reference to the Discloser's Confidential Information.

12.5 Compelled Disclosure

The Recipient may disclose Confidential Information to the extent required by law, regulation, or valid legal process, provided that, unless legally prohibited, it gives the Discloser prompt written notice, discloses only the portion legally required, and cooperates with the Discloser, at the Discloser's expense, in seeking protective treatment.

12.6 Return or Destruction

On termination or on the Discloser's written request, the Recipient shall return or destroy the Discloser's Confidential Information in its possession and, on request, certify that it has done so. The Recipient may retain copies (a) required to be retained by law or by its bona fide document retention or backup policies,

and (b) of any Deliverable or work product it is entitled to retain under this Agreement. Any retained copy remains subject to this Section 12 for so long as it is retained.

12.7 Injunctive Relief

The Parties acknowledge that a breach of this Section 12 may cause irreparable harm for which monetary damages are an inadequate remedy, and that the Discloser is entitled to seek injunctive relief without the need to post a bond or prove actual damages.

12.8 Survival

This Section 12 survives termination or expiration for a period of five (5) years, except that obligations with respect to information constituting a trade secret survive for so long as the information remains a trade secret under applicable law.

13. DATA PROTECTION AND SECURITY

13.1 Compliance

Each Party shall comply with all data protection and privacy laws applicable to it in connection with the Services.

13.2 Roles

As between the Parties, Client is the controller of, and is solely responsible for, all personal information contained in Client Materials and Client Data, including the lawfulness of its collection and of its disclosure to Fruition. Fruition processes such personal information only on Client's documented instructions and only to the extent necessary to perform the Services.

13.3 Data Processing Addendum

If the Services involve the processing of personal information subject to the EU or UK General Data Protection Regulation, the California Consumer Privacy Act, or any other law that requires specific contractual terms, the Parties shall execute a data processing addendum, which upon execution forms part of this Agreement and supersedes this Section 13 to the extent of any conflict.

13.4 Regulated Data

Client shall not provide, and shall not permit Fruition to access, any data subject to a heightened regulatory regime, including protected health information governed by the Health Insurance Portability and Accountability Act, cardholder data governed by the Payment Card Industry Data Security Standard, or data subject to any similar regime, unless the Parties have first executed a written addendum, such as a business associate agreement, expressly addressing that data. Fruition has no liability arising from Client's provision of such data in breach of this Section 13.4.

13.5 Security

Fruition shall maintain commercially reasonable administrative, technical, and physical safeguards designed to protect Client Materials and Client Data in its possession against unauthorized access, use, or disclosure. Client is solely responsible for the configuration, security settings, access controls, and user permissions within each Third-Party Platform, except to the extent a Work Order expressly makes their configuration a Deliverable.

13.6 Security Incident Notification

Each Party shall notify the other without undue delay, and in any event within seventy-two (72) hours, after becoming aware of any confirmed unauthorized access to or disclosure of the other Party's Confidential Information in its possession, and shall provide reasonable cooperation in investigating and remediating the incident.

14. WARRANTIES AND DISCLAIMER

14.1 Mutual Warranties

Each Party represents and warrants that it is duly organized and validly existing, that it has full power and authority to enter into and perform this Agreement and each Work Order, that each Work Order it executes is executed by its duly authorized representative, and that its performance will not breach any agreement with a third party.

14.2 Title Warranty

Fruition represents and warrants that it holds, and will continue to hold, all rights necessary to make the assignment in Section 10.4 and to grant the licenses in Section 10.5, including all rights in any contribution to a Deliverable made by any of its Personnel, and that no Deliverable will be subject to any lien, encumbrance, or third-party claim of ownership arising through Fruition.

14.3 Fruition Services Warranty

Fruition warrants that the Services will be performed in a professional and workmanlike manner in accordance with generally accepted industry practice, and that each Deliverable will conform in all material respects to its Acceptance Criteria for a period of thirty (30) days following Acceptance of that Deliverable (the "Warranty Period").

14.4 Exclusive Remedy

Client's sole and exclusive remedy, and Fruition's entire liability, for breach of the warranty in Section 14.3 is that Fruition shall, at its option and at no additional charge, re-perform the non-conforming Services or correct the non-conforming Deliverable, provided Client notifies Fruition in writing of the non-conformity within the Warranty Period and gives Fruition a reasonable opportunity to cure. If Fruition is unable to cure after reasonable efforts, Fruition shall refund the Fees paid for the non-conforming Deliverable.

14.5 Warranty Exclusions

The warranty in Section 14.3 does not apply to any non-conformity caused by: (a) Client Materials or Client Data; (b) any Third-Party Platform or Third-Party Materials; (c) any modification to a Deliverable made by anyone other than Fruition; (d) use of a Deliverable other than as contemplated by the applicable Work Order; (e) Client's failure to perform any obligation under Section 5; or (f) a change to a Third-Party Platform after Acceptance.

14.6 Client Warranties

Client represents and warrants that it has all rights, licenses, and consents necessary to provide the Client Materials and Client Data to Fruition and to grant the license in Section 10.2, and that Fruition's use of them as contemplated by this Agreement will not infringe the rights of any third party or violate any law.

14.7 Disclaimer

EXCEPT AS EXPRESSLY SET OUT IN THIS SECTION 14, THE SERVICES AND DELIVERABLES ARE PROVIDED "AS IS," AND FRUITION DISCLAIMS ALL OTHER WARRANTIES, CONDITIONS, AND REPRESENTATIONS OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR ARISING FROM COURSE OF DEALING OR USAGE OF TRADE, INCLUDING ANY IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, ACCURACY, OR UNINTERRUPTED OR ERROR-FREE OPERATION. FRUITION DOES NOT WARRANT THAT THE SERVICES OR DELIVERABLES WILL ACHIEVE ANY PARTICULAR BUSINESS, FINANCIAL, OR OPERATIONAL RESULT.

15. INDEMNIFICATION

15.1 Fruition Indemnity

Fruition shall defend Client against any third-party claim alleging that a Deliverable, as delivered by Fruition and used as contemplated by the applicable Work Order, infringes that third party's United States patent, copyright, trademark, or trade secret rights, and shall indemnify Client against damages finally awarded against Client, or amounts payable under a settlement approved by Fruition, in respect of that claim.

15.2 Infringement Remedies

If a Deliverable is, or in Fruition's reasonable opinion is likely to be, the subject of a claim under Section 15.1, Fruition may, at its option and expense: (a) procure the right for Client to continue using the Deliverable; (b) modify or replace the Deliverable so that it is non-infringing while remaining materially equivalent in function; or (c) if neither (a) nor (b) is commercially reasonable, terminate the affected Work Order and refund the Fees paid for the affected Deliverable, less a reasonable allowance for the period of Client's use. Sections 15.1 and 15.2 state Fruition's entire liability and Client's exclusive remedy for intellectual property infringement.

15.3 Fruition Indemnity Exclusions

Fruition has no obligation under Section 15.1 to the extent a claim arises from: (a) Client Materials or Client Data; (b) any Third-Party Platform or Third-Party Materials; (c) any modification of a Deliverable not made by Fruition; (d) combination of a Deliverable with anything not supplied by Fruition, where the claim would not have arisen but for the combination; (e) Client's use of a Deliverable other than as contemplated by the applicable Work Order; or (f) Fruition's compliance with Client's written instructions, designs, or specifications.

15.4 Client Indemnity

Client shall defend and indemnify Fruition against any third-party claim arising from: (a) Client Materials or Client Data, including any claim that they infringe a third party's rights or that their collection, use, or disclosure violates any law; (b) Client's breach of Section 13.4; (c) Client's use of any Third-Party Platform; or (d) Client's breach of Section 14.6.

15.5 Procedure

The indemnified Party shall: (a) give the indemnifying Party prompt written notice of the claim, provided that failure to give prompt notice relieves the indemnifying Party of its obligations only to the extent it is materially prejudiced by the delay; (b) give the indemnifying Party sole control of the defense and

settlement of the claim, provided that no settlement that imposes any non-monetary obligation or admission of liability on the indemnified Party may be entered without its prior written consent, not to be unreasonably withheld; and (c) provide reasonable cooperation at the indemnifying Party's expense. The indemnified Party may participate in the defense at its own expense with counsel of its choosing.

15.6 Sole Indemnities

Sections 15.1 through 15.5 state the Parties' sole and exclusive indemnification obligations. Neither Party owes the other any general indemnity for breach of this Agreement, and a Party's remedy for breach is limited to its remedies at law and in equity, subject to Section 16.

16. LIMITATION OF LIABILITY

16.1 Exclusion of Indirect Damages

TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY IS LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, BUSINESS, GOODWILL, ANTICIPATED SAVINGS, OR DATA, ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY WORK ORDER, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE, AND EVEN IF THAT PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

16.2 Liability Cap

TO THE MAXIMUM EXTENT PERMITTED BY LAW, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT AND ALL WORK ORDERS, WHETHER IN CONTRACT, TORT, OR OTHERWISE, SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT TO FRUITION UNDER THE WORK ORDER GIVING RISE TO THE CLAIM IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

16.3 Exceptions to the Cap

Sections 16.1 and 16.2 do not apply to: (a) Client's obligation to pay Fees and expenses due under any Work Order; (b) a Party's indemnification obligations under Section 15; (c) a Party's breach of Section 12 (Confidentiality); (d) a Party's infringement or misappropriation of the other Party's Intellectual Property Rights; or (e) a Party's fraud, gross negligence, or willful misconduct. Nothing in this Agreement limits any liability that cannot be limited under applicable law.

16.4 Basis of the Bargain

The Parties acknowledge that the limitations and exclusions in this Section 16 reflect an agreed allocation of risk between them, that the Fees have been set in reliance on that allocation, and that they form an essential basis of the bargain. These limitations apply notwithstanding the failure of the essential purpose of any limited remedy.

16.5 Survival

This Section 16 survives termination or expiration.

17. INSURANCE

Fruition shall maintain, at its own expense, throughout the term of this Agreement and for [[CONFIRM: tail period, e.g. one year]] afterwards, insurance with reputable insurers of the following types and in not less than the following amounts:

- (a) commercial general liability insurance of not less than [[CONFIRM: per-occurrence limit]] per occurrence and [[CONFIRM: aggregate limit]] in the aggregate;
- (b) professional liability (errors and omissions) insurance, including technology errors and omissions coverage, of not less than [[CONFIRM: per-claim limit]] per claim and [[CONFIRM: aggregate limit]] in the aggregate;
- (c) cyber liability insurance of not less than [[CONFIRM: limit, or delete this subsection if not carried]]; and
- (d) workers' compensation and employer's liability insurance as required by applicable law.

Fruition shall provide certificates of insurance on Client's written request. Fruition's maintenance of insurance does not increase or otherwise affect the limitations of liability in Section 16.

18. TERMINATION

18.1 Expiration of a Work Order

A Work Order expires on completion and Acceptance of all Deliverables under it and payment in full of all Fees due under it.

18.2 Termination of this Agreement for Convenience

Either Party may terminate this Agreement for convenience on sixty (60) days' prior written notice. Termination under this Section 18.2 prevents the execution of new Work Orders but does not terminate any Work Order in force on the date of the notice, and this Agreement continues to govern each such Work Order until it expires or is terminated.

18.3 Termination for Cause

Either Party may terminate this Agreement or any Work Order with immediate effect on written notice if the other Party: (a) commits a material breach that is incapable of cure; (b) commits a material breach that is capable of cure and fails to cure it within thirty (30) days of written notice describing the breach in reasonable detail; or (c) becomes insolvent, makes a general assignment for the benefit of creditors, or has a receiver, trustee, or administrator appointed over any material part of its assets, or a bankruptcy or similar proceeding is commenced by or against it and is not dismissed within sixty (60) days. Fruition may additionally terminate a Work Order for cause if Client fails to pay any undisputed amount within fifteen (15) days of written notice of non-payment.

18.4 Termination of a Work Order for Convenience

Client may terminate a Work Order for convenience on thirty (30) days' prior written notice. On such termination, Client shall pay Fruition: (a) all Fees for Services performed and Deliverables delivered up to the effective date of termination, including work in progress, calculated at Fruition's then-current time and materials rates if the Work Order is a fixed-fee engagement; (b) all non-cancellable third-party costs and out-of-pocket expenses committed by Fruition in reliance on the Work Order; and (c) Fruition's

reasonable costs of disengagement, transition, and handover. Any deposit or advance payment is non-refundable and shall be credited against these amounts.

18.5 Effect of Termination

On termination or expiration: (a) Client shall pay all amounts due to Fruition within fifteen (15) days; (b) each Party shall return or destroy the other's Confidential Information in accordance with Section 12.6; (c) Fruition shall deliver to Client all Deliverables completed and paid for as at the date of termination, together with any Client Materials in Fruition's possession, and shall provide reasonable transition assistance at Fruition's then-current time and materials rates if Client requests it in writing; and (d) all licenses granted by Fruition to Client under Section 10 that are expressed to be perpetual survive, provided Client has paid in full.

18.6 No Prejudice to Accrued Rights

Termination does not affect any right or obligation that accrued before the effective date of termination.

18.7 Survival

Sections 1, 2.3, 5.3, 9 (as to amounts accrued), 10, 11.3, 12, 13, 14.2, 14.7, 15, 16, 18.5, 18.6, 18.7, 19, 20, 21, 22, 23, and 24 survive termination or expiration of this Agreement and of each Work Order.

19. NON-SOLICITATION

19.1 Restriction

During the term of this Agreement and for twelve (12) months after its termination or expiration, Client shall not, directly or indirectly, solicit for employment or engagement, hire, or engage as a contractor any individual who is or was employed or engaged by Fruition and who was involved in performing the Services or with whom Client had contact in connection with the Services, without Fruition's prior written consent.

19.2 Exception

Section 19.1 does not prohibit Client from hiring an individual who responds to a bona fide general public advertisement or recruitment campaign not specifically targeted at Fruition's Personnel.

19.3 Placement Fee

If Client breaches Section 19.1, Client shall pay Fruition a placement fee equal to [[CONFIRM: percentage, commonly 30% to 50%]] of the individual's first-year total annual compensation with Client. The Parties agree that this amount is a reasonable estimate of the loss Fruition would suffer, that such loss would be difficult to quantify, and that this fee is liquidated damages and not a penalty. Payment of the placement fee is Fruition's sole monetary remedy for a breach of Section 19.1, without prejudice to Fruition's right to seek injunctive relief.

19.4 Reasonableness and Reformation

The Parties acknowledge that the restrictions in this Section 19 are reasonable in scope, duration, and geography, are necessary to protect Fruition's legitimate business interests, and are supported by adequate consideration. If a court of competent jurisdiction finds any restriction unenforceable as written, that restriction shall be reformed and enforced to the maximum extent permitted by applicable law.

19.5 Survival

This Section 19 survives termination or expiration in accordance with its terms.

20. PUBLICITY AND REFERENCES

20.1 Identification of Client

Notwithstanding Section 12, Fruition may identify Client as a customer of Fruition and use Client's name and logo in Fruition's marketing materials, website, client lists, proposals, and communications with the vendors of Third-Party Platforms, in each case in accordance with any trademark usage guidelines Client provides in writing.

20.2 Case Studies

Fruition may prepare a written or visual case study describing the Services and their outcomes, provided that Fruition submits the case study to Client for review and does not publish it without Client's prior written approval, which Client shall not unreasonably withhold, condition, or delay, and which is deemed given if Client does not respond within ten (10) Business Days of submission.

20.3 Confidential Information

Nothing in this Section 20 permits Fruition to disclose Client's Confidential Information without Client's prior written consent, and any Confidential Information proposed to be included in a case study is subject to Client's approval under Section 20.2.

21. FORCE MAJEURE

21.1 Definition

A "Force Majeure Event" is an event beyond a Party's reasonable control that could not have been avoided or overcome by the exercise of reasonable diligence, including act of God, natural disaster, severe weather that renders performance impossible, fire, flood, epidemic, pandemic, war, act of terrorism, cyber warfare, civil unrest, act of government, embargo, national labor strike not involving that Party's own workforce, and failure of public utilities or the public internet.

21.2 Effect

Neither Party is liable for any delay or failure to perform, other than an obligation to pay money, to the extent caused by a Force Majeure Event, provided it gives the other Party prompt written notice and uses commercially reasonable efforts to resume performance. For the avoidance of doubt, a Force Majeure Event does not excuse Client's obligation to pay any amount due, and a Party's lack of funds is not a Force Majeure Event.

21.3 Prolonged Force Majeure

If a Force Majeure Event continues for more than sixty (60) consecutive days, either Party may terminate the affected Work Order on twenty (20) Business Days' written notice, in which case Client shall pay for all Services performed up to the effective date of termination.

22. DISPUTE RESOLUTION

22.1 Escalation

If a dispute arises out of or relating to this Agreement or any Work Order, the Parties shall first attempt to resolve it by negotiation between their respective project leads, and if unresolved within ten (10) Business Days, by negotiation between senior executives of each Party with authority to settle. Any settlement shall be recorded in writing and signed by both Parties.

22.2 Mediation

If the dispute is not resolved within twenty (20) Business Days of escalation to senior executives, either Party may require the dispute to be submitted to non-binding mediation administered by a mutually agreed mediator, conducted remotely or in New York, New York. The Parties shall share the mediator's fees equally and shall each bear their own costs.

22.3 Litigation

Neither Party may commence court proceedings until it has complied with Sections 22.1 and 22.2, except that either Party may at any time seek injunctive or other equitable relief, commence proceedings to recover an undisputed debt, or commence proceedings to prevent the expiry of a limitation period.

23. NOTICES

23.1 Form and Delivery

All notices under this Agreement must be in writing and delivered by hand, by nationally recognized overnight courier, or by email, to the address set out in the applicable Work Order. Notices to Fruition must be copied to [[CONFIRM: Fruition legal or notices email address]].

23.2 Deemed Receipt

A notice is deemed received: (a) if delivered by hand, on delivery; (b) if sent by courier, on the date of confirmed delivery; or (c) if sent by email, on transmission, provided the sender does not receive an automated delivery failure notification, and provided that a notice transmitted after 5:00 p.m. in the recipient's local time, or on a day that is not a Business Day, is deemed received on the next Business Day.

23.3 Notices of Breach

A notice of breach, termination, or indemnification must be delivered by hand or by courier, with a copy by email. Email alone is not sufficient for such notices.

24. GENERAL PROVISIONS

24.1 Governing Law

This Agreement and each Work Order, and all disputes arising out of or relating to them, whether in contract, tort, or otherwise, are governed by the laws of the State of New York, without giving effect to any conflict of laws principle that would require the application of the law of another jurisdiction. The United Nations Convention on Contracts for the International Sale of Goods does not apply.

24.2 Exclusive Jurisdiction and Venue

Each Party irrevocably submits to the exclusive jurisdiction of the state and federal courts located in New York County, New York, for any action arising out of or relating to this Agreement or any Work Order, and irrevocably waives any objection to venue in those courts, including any objection based on forum non conveniens.

24.3 Waiver of Jury Trial

EACH PARTY IRREVOCABLY WAIVES ANY RIGHT TO A TRIAL BY JURY IN ANY ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY WORK ORDER.

24.4 Entire Agreement

Each executed Work Order, together with this Agreement as incorporated into it, any Change Orders to it, and any Exhibits or Schedules to it, constitutes the entire agreement between the Parties with respect to the Services under that Work Order, and supersedes all prior and contemporaneous agreements, proposals, representations, and understandings, whether written or oral. Each Party acknowledges that it has not relied on any statement or representation not expressly set out in the Work Order or in this Agreement.

24.5 Amendment

No amendment to this Agreement is effective unless it is in writing and signed by an authorized representative of each Party. A Work Order does not amend this Agreement except as provided in Section 2.3(b).

24.6 Waiver

No failure or delay in exercising any right operates as a waiver of it. A waiver is effective only if in writing and signed by the waiving Party, and applies only to the specific instance for which it is given.

24.7 Severability

If any provision of this Agreement is held invalid, illegal, or unenforceable, that provision shall be reformed to the minimum extent necessary to make it enforceable while preserving the Parties' original intent, and if it cannot be so reformed, it shall be severed, and the remaining provisions continue in full force and effect.

24.8 Assignment

Neither Party may assign this Agreement or any Work Order, in whole or in part, without the other Party's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed, except that either Party may assign this Agreement without consent to an Affiliate or to a successor in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets, provided the assignee assumes all obligations in writing. Any purported assignment in breach of this Section 24.8 is void. This Agreement binds and benefits the Parties and their permitted successors and assigns.

24.9 No Third-Party Beneficiaries

This Agreement is for the sole benefit of the Parties and their permitted successors and assigns. Nothing in it confers any right or remedy on any other person.

24.10 Counterparts and Electronic Signature

This Agreement is not executed by the Parties and takes effect only as incorporated into an executed Work Order. Each Work Order and Change Order may be executed in counterparts, each of which is an original and all of which together constitute one instrument. A signature delivered by electronic means, including by electronic signature platform or in portable document format, has the same legal effect as an original handwritten signature. The Parties consent to the use of electronic records and signatures under

the Electronic Signatures in Global and National Commerce Act and any applicable state enactment of the Uniform Electronic Transactions Act.

24.11 Attorneys' Fees

In any action arising out of or relating to this Agreement or any Work Order, the prevailing Party is entitled to recover its reasonable attorneys' fees and costs from the other Party, in addition to any other relief awarded.

24.12 Equitable Relief

Each Party acknowledges that a breach of Section 10, 12, or 19 may cause irreparable harm for which monetary damages are inadequate, and that the non-breaching Party may seek injunctive or other equitable relief in addition to any other remedy.

24.13 Non-Exclusivity

This Agreement is non-exclusive. Nothing in it prevents Fruition from providing services of any kind, including services substantially similar to the Services, to any other person, including a competitor of Client.

END OF MASTER SERVICES AGREEMENT

This Agreement is a standing reference document. It is not signed. It becomes binding on a client only when incorporated by reference into a Work Order executed by both parties in substantially the form set out in Exhibit A.